

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
ROBERT SMITH,

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and DETECTIVE JONATHAN**

**THOMAS, SHIELD #948146,
Defendants.**

-----X
To the above-named Defendant(s):

Index No.:

Date Filed:

**Plaintiff designates
Queens County as the
Place For trial.**

**The basis of venue is
Place of Occurrence**

SUMMONS

**Plaintiff resides at
34-25 Linden Place
Flushing, New York 11354**

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff(s) Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

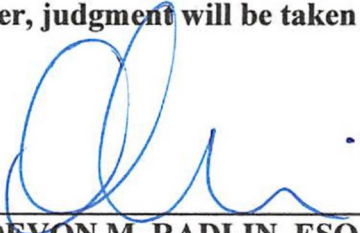
**DATED: New York, New York
April 12, 2020**

Defendant(s)' Address:

**NYC POLICE DEPARTMENT:
1 Police Plaza
New York, New York 10038**

**THE CITY OF NEW YORK:
100 Church Street
New York, New York 10007**

**DET. JONATHAN THOMAS, SHIELD #948146
c/o NYPD
1 Police Plaza, New York, NY 10038**


**DEVON M. RADLIN, ESQ.
Attorney for Plaintiff
112 W 34th Street – 18th Floor
New York, New York 10120
Tel No.: (212) 406 – 9200**

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
ROBERT SMITH,

Index No.:
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Plaintiff,

-against-

COMPLAINT

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and DETECTIVE JONATHAN
THOMAS, SHIELD #948146,**

Defendants.
-----X

Plaintiff, by his attorney, **DEVON M. RADLIN**, complaining of the defendants, respectfully allege, upon information and belief, as follows:

PARTIES

1. Plaintiff, **ROBERT SMITH (SMITH)**, was and still is a resident of the County of Queens, City and State of New York.

2. At all the times herein mentioned, defendant **CITY OF NEW YORK (CITY)** was and still is a domestic municipal corporation duly organized and existing under and by virtue of the laws of the City and State of New York.

3. At all the times herein mentioned, defendant **NEW YORK CITY POLICE DEPARTMENT (NYPD)**, was and still is a municipal agency duly organized and existing under and by virtue of the laws of the City and State of New York.

4. Defendant **DETECTIVE JONATHAN THOMAS, SHIELD #948146, (DET. THOMAS)**, is detective and is employed by the defendants **CITY** and **NYPD**, jointly and severally.

5. At all times herein mentioned, the defendant **DET. THOMAS** was employed by the defendants **CITY** and **NYPD**, jointly and severally, in the capacity of detective, and was acting in such capacity as the agent, officer, servant and employee of the defendants, **CITY** and **NYPD**, jointly and severally. He is sued individually and in his official capacity.

6. At all the times herein mentioned, defendant **DET. THOMAS** was acting under color of state law and under his authority as detective for the defendants, **CITY** and **NYPD**, jointly and severally.

7. At all times herein mentioned, the defendant **DET. THOMAS** was assigned to the 113th Precinct located at 16702 Baisley Blvd in the County of Queens, City and State of New York by the defendants **CITY** and **NYPD**, jointly and severally.

8. At all the times herein mentioned, defendant **DET. THOMAS** participated and arranged the arrest of plaintiff on January 16, 2019 at the defendant **NYPD** 113th Precinct in the County of Queens and State of New York.

9. At all the times herein mentioned, defendant **DET. THOMAS** participated in the initiation and continuation of plaintiff's prosecution from plaintiff's arrest on January 16, 2019.

CONDITION PRECEDENT

10. Plaintiff has duly and timely served a statutory Notice of Claim upon the defendants, **CITY** and **NYPD**.

11. Plaintiff has complied with all the conditions precedent to the institution of this action and have complied with all the provisions of the charter of the City of New York in relation thereto and in particular have duly presented their claims herein to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentation of said notice of claim and that said claims remain

unadjusted and the Comptroller of the City of New York has failed and refused to make any adjustment or payment of the same and the plaintiffs, prior to the commencement of these actions and within ninety (90) days after the injuries hereinafter described were received, duly served their notice of intention to sue upon the claims hereinafter set forth, and that fifteen (15) months have not elapsed since the accrual of this cause of actions against the defendants.

12. On July 17, 2019, Plaintiff's 50h Hearing was conducted.

FACTS

13. On December 23, 2019, at or about 10:00 P.M., Plaintiff presented himself to the 109th Precinct located at 37-05 Union Street, Flushing in the County of Queens, State of New York to file a complaint report against MONIQUE PATRICK and her son DEQUEL RYANS for sending him threatening text messages.

14. Prior to January 16, 2019, defendant **DET. THOMAS** contacted plaintiff regarding MONIQUE PATRICK and demanded that he appear at the 113th Precinct in the County of Queens, State of New York to discuss MONIQUE PATRICK.

15. Due to defendant **DET. THOMAS's** command, on January 16, 2019, in the morning hours, plaintiff appeared at the 113th Precinct.

16. Upon plaintiff entering the defendant **NYPD** 113th Precinct, defendant **DET. THOMAS** immediately arrested plaintiff and placed him into a holding cell.

17. Plaintiff was left in the holding cell for approximately two (2) hours.

18. Defendant **DET. THOMAS** was aware and had actual knowledge that plaintiff was represented by counsel.

19. In further violation of plaintiff's rights, Defendant **DET. THOMAS** interrogated plaintiff while he was in the holding cell.

20. Defendant **DET. THOMAS** told plaintiff that since plaintiff retained counsel, he now had to arrest plaintiff.

21. Plaintiff asked defendant **DET. THOMAS** why he was being arrested.

22. Defendant **DET. THOMAS** advised plaintiff that he was being arrested for aggravated harassment against MONIQUE PATRICK.

23. Plaintiff demanded defendant **DET. THOMAS** to provide proof of the aggravated harassment against MONIQUE PATRICK.

24. Defendant **DET. THOMAS** had no proof of the aggravated harassment against MONIQUE PATRICK.

25. Plaintiff advised defendant **DET. THOMAS** that MONIQUE PATRICK and her son DEQUEL RYANS had sent threatening text messages to his cell phone, that he filed a complaint report with the defendant **NYPD** 109th precinct and that he had proof of said text messages.

26. Plaintiff advised defendant **DET. THOMAS** that MONIQUE PATRICK was known by defendant **NYPD** to make false allegations against him to the defendant **NYPD**.

27. Defendant **DET. THOMAS** falsely imprisoned and arrested plaintiff at the defendant **NYPD** 113th Precinct located in Queens County, State of New York.

28. Defendant **DET. THOMAS** was aware and had actual knowledge that he had no probable cause to arrest plaintiff.

29. Plaintiff was searched, handcuffed, fingerprinted, photographed and processed at the defendant **NYPD** 113th Precinct.

30. No contraband was found on plaintiff.

31. There were no outstanding warrants for plaintiff.

32. Plaintiff was never provided with his Miranda rights.

33. Plaintiff was transported to Central Booking in Queens County, State of New York.

34. On January 16, 2019, at or about 9:00 P.M., Plaintiff was arraigned on the Criminal Court CR-001734-19QN with the following: (1) Aggravated Harassment in the Second Degree (P.L. 240.30-1); and (2) Harassment in the Second Degree (P.L. 240.26-1).

35. Plaintiff was released on his own recognizance.

36. Defendants, *CITY, NYPD* and *DET. THOMAS*, jointly and severally, intentionally detained and imprisoned plaintiff without cause.

37. Defendants, *CITY, NYPD* and *DET. THOMAS*, jointly and severally, intentionally continued and participated in the criminal prosecution of plaintiff when they were aware that plaintiff had not committed any crime.

38. On April 16, 2019, Plaintiff appeared in the Criminal Court of Queens County, State of New York.

39. On April 16, 2019, Plaintiff's Criminal Court CR-001734-19QN was dismissed.

40. Defendants, *CITY, NYPD* and *DET. THOMAS*, jointly and severally, while acting in active concert, committed the following acts:

- a) Without a legal or just reason or probable cause arrested and imprisoned plaintiff.
- b) Covered-up their actions.
- c) Arrested plaintiff knowing that they had no legal authority to do so and with knowledge that their actions violated both New York State and United States constitutional civil rights.

- d) Falsely swore to a Criminal Court complaint charging the plaintiff with Aggravated Harassment in the Second Degree and other related charges when the defendants knew that plaintiff had not committed such crimes.
- e) Arrested Plaintiff with knowledge that plaintiff had not committed any crimes and that their actions violated both New York State and United States constitutional civil rights.
- f) Initiated and continued criminal proceedings against plaintiff when there was no probable cause.
- g) Had actual malice against plaintiff demonstrated by the arrest of plaintiff when provided with exculpatory evidence.
- h) Falsely arrested and imprisoned plaintiffs for twelve (12) hours knowing that they did not have probable cause to arrest and/or detain plaintiff.

41. The foregoing occurrence and resulting injuries were not due to any fault or want of care or negligence on the part of plaintiff, but was due wholly and solely to the carelessness, recklessness and negligence of the defendants, **CITY** and **NYPD**, jointly and severally, their detectives and police officers, agents, servants, officers and employees, specifically, **DET. THOMAS**: in that defendants' detectives and police officers knowingly and intentionally violated the plaintiff's rights as guaranteed to him by the constitutions of the United States and New York; in that defendants' detectives and police officers' actions and failures to act were an abuse of their authority; in that their actions and failures to act were to harass, humiliate and intimidate plaintiff without legal or just cause; in that defendants had actual and constructive knowledge of the lack of training in the supervision and monitoring of the public, specifically the plaintiff, for their detectives and police officers; in failing to train their detectives and police

officers in proper and adequate security, supervision and monitoring policies and procedures; in failing to train their detectives and police officers in proper and adequate policies and procedures; in having actual and constructive knowledge of the lack of adequate training in their policies and procedures to protect the public, specifically **DET. THOMAS**, to ensure their detectives and police officers were trained in the New York Penal Law Code and their obligations and restrictions under the same; in failing to train their detectives and police officers in proper and adequate supervision policies and procedures with the public, specifically plaintiff; in failing to properly train and supervise their detectives and police officers; in failing to provide plaintiff with a safe environment; in failing to prevent the false arrest of plaintiff; in failing to stop or intervene in the false arrest and imprisonment of the plaintiff; in failing to follow security policies and procedures with the public, specifically plaintiff; in that defendants' had actual and constructive notice of the unfitness of their detectives, specifically, defendants, **DET. THOMAS**; in failing to abide by arrest policies and procedures, specifically plaintiff; in failing to foresee and guard against the happening of the occurrence; and in that the defendants were otherwise careless and negligent in the premises.

42. That solely by reason of the negligence and carelessness of the defendants, **CITY** and **NYPD**, jointly and severally, their detectives and police officers, agents, servants, officers and employees, specifically, **DET. THOMAS**, plaintiff sustained violations of his civil rights which are protected by the New York State and United States Constitutions; false arrest; false imprisonment; detained for twelve (12) hours; days missed from work; depression; fear; anxiety; extreme emotional distress; humiliation; stress; inability to sleep; attorney fees; that some of his psychological injuries may be permanent; may be required to seek medical attention in the future; and was prevented from attending to his daily social and economic activities.

FIRST CAUSE OF ACTION
(NEGLIGENCE)

43. Plaintiff repeats and realleges every allegation contained in paragraphs numbered “1” through “42” herein, as if the same were set forth more fully and at length.

44. That the defendants, **CITY** and **NYPD**, jointly and severally, acting in active concert, their detectives and police officers, agents, servants, officers and employees, specifically, **DET. THOMAS**, failed to supervise plaintiff, causing plaintiff to be illegally arrested and imprisoned, causing plaintiff to suffer serious and permanent injuries.

45. That the defendants, **CITY** and **NYPD**, jointly and severally, are liable for the actions of its employees, **DET. THOMAS**.

46. That by reason of the foregoing, plaintiff has suffered substantial damages.

47. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION
(STATE- NEGLIGENT HIRING)

48. Plaintiff repeats and realleges each allegation set forth in paragraphs “1” through “42” and “44” through “47” of this complaint, with the same force and effect as if set forth herein at length.

49. That the defendants, **CITY** and **NYPD**, jointly and severally, their detectives and police officers, agents, servants, officers and employees were negligent in their hiring and supervising of defendant, **DET. THOMAS**.

50. That the defendants, **CITY** and **NYPD**, jointly and severally, acting in active concert, their detectives and police officers, agents, servants, officers and employees, specifically, **DET. THOMAS**, failed to train their detectives and police officers, causing plaintiff

to be illegally arrested and imprisoned which caused plaintiff to suffer serious and permanent injuries.

51. That the defendants, **CITY** and **NYPD**, jointly and severally, are liable for the actions of its employee, **DET. THOMAS**.

52. That the damages herein exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

53. That by reason of the foregoing, plaintiff has suffered substantial damages.

THIRD CAUSE OF ACTION
(FEDERAL- FALSE ARREST AND IMPRISONMENT)

54. Plaintiff repeats and realleges every allegation contained in paragraphs numbered "1" through "42" herein, as if the same were set forth herein more fully and at length.

55. The defendants, **CITY**, **NYPD** and **DET. THOMAS**, jointly and severally, acting in concert and under color of state law, and each aiding and abetting one another with knowledge of the systematic violation of the plaintiffs' Constitutional and Civil Rights as previously alleged, did actively conspire to prevent plaintiff from obtaining redress from such violations and did further agree to undertake any actions necessary to hide, cover up, and falsely justify their actions and in furtherance of, they did commit the following acts:

- a) Without a legal or just reason or probable cause arrested and imprisoned plaintiffs.
- b) Covered-up their actions.
- c) Falsely swore to a Criminal Court complaint and/or Supporting Deposition charging plaintiff with Aggravated Harassment in the Second Degree and other related charges when the defendants knew that plaintiff had not committed such crimes.

- d) Arrested plaintiff knowing that they had no legal authority to do so.
- e) Arrested plaintiff with knowledge that their actions violated both New York State and United States constitutional civil rights.
- f) Initiated and continued criminal proceedings against plaintiff when there was no probable cause.
- g) Had actual malice against plaintiff demonstrated by the arrest and failure to dismiss the criminal charges against him when provided with exculpatory evidence.
- h) Falsely arrested and imprisoned plaintiff for twelve (12) hours knowing that they did not have probable cause to arrest and/or detain plaintiff.

56. That by engaging in the foregoing acts, the defendant **DET. THOMAS**, all committed under color of state law and under their authority as detectives and police officers of the defendants, **CITY** and **NYPD**, jointly and severally, and while acting in the scope of his employment and pursuant to authority vested in him by the defendants, **CITY** and **NYPD**, jointly and severally, the defendants, jointly and severally, entered into and carried out a plan and scheme designed and intended to deny and deprive plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and in fact did so deny and deprive plaintiff of his rights, privileges and immunities.

57. That by reason of the foregoing, the plaintiff has suffered substantial damages.

58. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION
(STATE- FALSE ARREST AND IMPRISONMENT)

59. Plaintiff repeats and realleges each allegation contained in paragraphs numbered “1” through “42” herein, as if the same were set forth herein more fully and at length.

60. The defendants, **CITY, NYPD** and **DET. THOMAS**, jointly and severally, acting in concert and under color of state law, and each aiding and abetting one another with knowledge of the systematic violation of the plaintiffs’ New York State Constitutional Rights as previously alleged, did actively conspire to prevent plaintiff from obtaining redress from such violations and did further agree to undertake any actions necessary to hide, cover up, and falsely justify their actions and in furtherance of, they did commit the following acts:

- a) Without a legal or just reason or probable cause arrested and imprisoned plaintiffs.
- b) Covered-up their actions.
- c) Falsely swore to a Criminal Court complaint and/or Supporting Deposition charging plaintiff with Aggravated Harassment in the Second Degree and other related charges when the defendants knew that plaintiff had not committed such crimes.
- d) Arrested plaintiff knowing that they had no legal authority to do so.
- e) Arrested plaintiff with knowledge that their actions violated both New York State and United States constitutional civil rights.
- f) Initiated and continued criminal proceedings against plaintiff when there was no probable cause.

- g) Had actual malice against plaintiff demonstrated by the arrest and failure to dismiss the criminal charges against him when provided with exculpatory evidence.
- h) Falsely arrested and imprisoned plaintiff for twelve (12) hours knowing that they did not have probable cause to arrest and/or detain plaintiff.

61. That by engaging in the foregoing acts, the defendants, **CITY, NYPD** and **DET. THOMAS**, jointly and severally, all committed under color of state law and under their authority as detectives and police officers of the defendants, **CITY** and **NYPD**, jointly and severally, and while acting in the scope of their employment and pursuant to authority vested in them by the defendants, **CITY** and **NYPD**, jointly and severally, the defendants, jointly and severally, entered into and carried out a plan and scheme designed and intended to deny and deprive plaintiff of his rights, privileges and immunities as guaranteed to him by the New York State Constitutional, and in fact did so deny and deprive plaintiff of his rights, privileges and immunities.

62. That by reason of the foregoing, the plaintiff has suffered substantial damages.

63. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION
(FEDERAL- FAILURE TO TRAIN AND SUPERVISE)

64. Plaintiff repeats and realleges each allegation contained in paragraphs numbered “1” through “42”, “44” through “47” and “55” through “58” herein, as if the same were set forth herein more fully and at length.

65. That defendants, **CITY** and **NYPD**, jointly and severally, by their deliberate acts, gross negligence and reckless conduct in failing to adequately train, discipline and supervise defendant **DET. THOMAS**, and in their failure to promulgate and put into effect appropriate

rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.

66. That the acts of the defendant **DET. THOMAS** committed under color of state law, deprived the plaintiff of his privileges and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

67. That by reason of the foregoing, the plaintiff has suffered substantial damages.

68. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION
(STATE- FAILURE TO TRAIN AND SUPERVISE)

69. Plaintiff repeats and realleges each allegation contained in paragraphs numbered "1" through "42", "44" through "47", "49" through "53" and "60" through "63" herein, as if the same were set forth herein more fully and at length.

70. That defendants, **CITY** and **NYPD**, jointly and severally, by their deliberate acts, gross negligence and reckless conduct in failing to adequately train, discipline and supervise defendant **DET. THOMAS**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.

71. That the acts of the defendant **DET. THOMAS** committed under color of state law, deprived plaintiff of his rights, privileges and immunities as guaranteed to him by the New York State Constitution.

72. That by reason of the foregoing, the plaintiff has suffered substantial damages.

73. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION
FEDERAL - FAILURE TO INTERVERE – §1983

74. Plaintiff repeats and realleges each allegation set forth in paragraphs numbered “1” through “42” herein, as if the same were set forth herein more fully and at length.

75. Defendants, ***CITY, NYPD*** and ***DET. THOMAS***, jointly and severally, observed and/or had reason to know that plaintiffs’ constitutional rights were being violated.

76. Defendants, ***CITY, NYPD*** and ***DET. THOMAS***, jointly and severally, had a realistic opportunity to intervene to prevent harm from occurring, specifically the false arrest, imprisonment and malicious prosecution of plaintiff.

77. Defendants, ***CITY, NYPD*** and ***DET. THOMAS***, jointly and severally, violated their duty to intervene and to protect the constitutional rights of citizens, specifically plaintiff, from infringement by other law enforcement officers in their presence.

78. The above actions committed by defendants, jointly and severally, were a violation of plaintiffs’ civil rights.

79. That by reason of the foregoing, the plaintiff has suffered substantial damages.

80. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION
(Federal - Malicious Prosecution)

81. Plaintiff repeats and reallages each allegation contained in paragraphs of the complaint numbered “1” through “42”, “44” through “47”, “55” through “58”, “65” through “68” and “75” through “80” herein with the same force and effect as if set forth herein at length.

82. The defendants, ***CITY*** and ***NYPD***, their detectives, police officers, agents, servants, officers, employees, specifically defendant ***DET. THOMAS***, jointly and severally,

commenced and continued a criminal proceeding against plaintiff when he knew plaintiff was innocent of said criminal charges.

84. From January 16, 2019 to date, the defendants, jointly and severally, have been on notice that plaintiff was falsely arrested on January 16, 2019.

85. There was no probable cause for the initiation of the criminal proceeding against plaintiff.

86. Defendants *CITY* and *NYPD*, their detectives and police officers, agents, servants, officers, employees, specifically defendant *DET. THOMAS*, jointly and severally, had actual malice against plaintiff which is demonstrated by the false arrest and continued criminal action against plaintiff upon receipt of exculpatory evidence.

87. The above constitutional violations caused immediate injury in the form of physical and emotional pain, suffering, shock, false arrest, false imprisonment, fright, humiliation, embarrassment and deprivation of plaintiffs' constitutional rights as protected by the United States Constitution.

88. That as a result of the foregoing, plaintiff has suffered substantial damages.

89. That the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION
(State- Malicious Prosecution)

90. Plaintiff repeat and reallages each allegation contained in paragraphs of the complaint numbered "1" through "42", "44" through "47", "49" through "53", "60" through "63" and "70" through "73" herein with the same force and effect as if set forth herein at length.

91. The defendants, *CITY* and *NYPD*, their detectives, police officers, agents, servants, officers, employees, specifically defendant *DET. THOMAS*, commenced and

continued a criminal proceeding against plaintiff when he knew plaintiff was innocent of said criminal charges.

92. From January 16, 2019 to date, the defendants, jointly and severally, have been on notice that plaintiff was falsely arrested.

93. There was no probable cause for the initiation of the criminal proceeding against plaintiff.

94. Defendants *CITY* and *NYPD*, their detectives and police officers, agents, servants, officers, employees, specifically defendant, *DET. THOMAS*, had actual malice against plaintiff, which is demonstrated by the false arrest, imprisonment and continued criminal action against plaintiff upon receipt of exculpatory evidence.

95. The above constitutional violations caused immediate injury in the form of physical and emotional pain, suffering, shock, false arrest, false imprisonment, fright, humiliation, embarrassment and deprivation of the plaintiffs' constitutional rights as protected by the New York State Constitution.

96. That as a result of the foregoing, plaintiff has suffered substantial damages.

97. That the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION
(FEDERAL- RIGHT TO DUE PROCESS)

98. Plaintiff repeats and realleges each allegation contained in paragraphs of the complaint numbered "1" through "42", "44" through "47", "55" through "58", "65" through "68", "75" through "80" and "82" through "87" herein with the same force and effect as if set forth herein at length.

99. The above actions of the Defendants, jointly and severally, particular the defendants, *CITY*, *NYPD* and *DET. THOMAS*, jointly and severally, violated the plaintiffs' right to due process when they falsely commenced criminal proceedings against plaintiff when they knew that plaintiff had not committed any crimes.

100. Defendants, jointly and severally, particular the defendants, *CITY* and *NYPD*, specifically defendants *DET. THOMAS*, committed the following in furtherance of violation of plaintiffs' right to due process: (1) covered up their actions; (2) falsely swore to a criminal complaint and supporting deposition against plaintiff; and (3) attempted to prevent plaintiff from redress for the violations.

101. The above constitutional violations are all actionable under and pursuant to the New York State Constitution and 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

102. The above actions of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiffs' rights and physical well-being.

103. The above constitutional violation caused immediate injury in the form of physical and emotional pain, suffering, shock, false arrest, illegal imprisonment, attorney's fees, fright, humiliation, embarrassment and deprivation of plaintiffs' constitutional rights.

104. That by reason of the foregoing, plaintiff has suffered substantial damages.

105. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION
CONSPIRACY – §1985(3)

106. Plaintiff repeats and realleges each allegation contained in paragraphs of the

complaint numbered “1” through “42”, “44” through “47”, “55” through “58”, “65” through “68”, “75” through “80”, “82” through “87” and “99” through “105”, herein with the same force and effect as if set forth herein at length.

107. The above actions of the Defendants, jointly and severally, particular the defendants, *CITY, NYPD* and *DET. THOMAS*, jointly and severally, conspired against plaintiff and violated plaintiffs’ right to equal protection of the laws, privileges and immunities under the laws when they falsely arrested and imprisoned plaintiff and in furtherance of the deprivation of rights, defendants’ falsely commenced criminal proceedings against plaintiff when they knew that plaintiff had not committed any crimes.

108. Defendants, jointly and severally, particular the defendants, *CITY* and *NYPD*, specifically defendant *DET. THOMAS*, committed the following acts in furtherance of the object of their conspiracy: (1) arrested plaintiff without probable cause; (2) falsely sworn to a criminal complaint affidavit against plaintiff; (3) falsely imprisoned plaintiff; (4) covered-up their actions against plaintiff; and (5) attempted to prevent plaintiff from redress for the violations.

109. That as a direct and proximate result of the knowing, intentional and malicious acts of the defendants, their detectives, employees, agents, officers and police officers, jointly and severally, as described aforesaid, all committed under color of state law and under their authority as law enforcement officers employed by the defendants, *CITY* and *NYPD*, jointly and severally, and while acting in the scope of their employment, and pursuant to authority vested in each of them by defendants, *CITY* and *NYPD*, jointly and severally, (Badge of Authority), the defendants’ caused plaintiff to be falsely arrested, falsely imprisoned, intimidated, degraded and humiliated without cause.

110. That by engaging in the foregoing acts, practices and courses of conduct, the defendants, their employees, agents, detectives and police officers, jointly and severally, specifically defendant **DET. THOMAS**, used his position in law enforcement for improper purposes, subjecting plaintiff to deprivation of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and in that plaintiff was denied his protected rights to be free from false arrests, false imprisonment, abuse, intimidation, degradation and humiliation without cause.

111. The actions of defendants, **CITY** and **NYPD.**, jointly and severally, their detectives and police officers, employees, agents, specifically defendant **DET. THOMAS** against plaintiff has deprived plaintiff of having and exercising his rights and privileges as a United States citizen secured by the United States Constitution, specifically 42 U.S.C. §1985(3).

112. Defendants, **CITY** and **NYPD**, jointly and severally, knew or should have known that the failure to adequately address the violent propensities and inadequate training of its detectives and police officers, specifically defendant **DET. THOMAS**, had caused problems in the past, and would continue to cause problems in the future, including violations of constitutional rights because of the failure to adopt and implement adequate policies, procedures and practices and to adequately screen, train, supervise and/or discipline their detectives, police officers engaging in, or likely to engage in, such behavior.

113. Defendants, **CITY** and **NYPD**, jointly and severally, despite actual knowledge of this unconstitutional pattern and practice by its rank and file, leadership at the defendants **CITY** and **NYPD** failed to implement any additional training or education of its officers to lessen the constitutional violations committed by their detectives and police officers, specifically, defendant **DET. THOMAS**.

114. The defendant **NYPD** policy, practice and custom of the usage of this illegal and unconstitutional failure to train and/or educate its detectives and police officers in the proper procedures of arrests, probable cause and New York State and City Penal Law directly and proximately caused harm to Plaintiff.

115. The above acts constituting a conspiracy against plaintiff by defendants, **CITY** and **NYPD**, jointly and severally, their agents, servants and officers, specifically defendants **DET. THOMAS**, directly and proximately caused the deprivation of Plaintiffs' constitutional rights secured by the Fourth (4th) and Fourteenth (14th) Amendments to the United States Constitution and were in violation of 42 U.S.C. § 1985(3).

116. As a result of the foregoing, Plaintiff was caused to suffer severe and permanent physical, psychological and emotional injuries, violations of his civil rights, emotional distress, depression, fear, anxiety, anguish, humiliation, attorney fees, medical treatment, loss of freedom and damage to their reputation within their community.

117 That by reason of the foregoing, plaintiff has suffered substantial damages.

118. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants, **CITY, NYPD** and **DET. THOMAS**, jointly and severally:

- A. Award compensatory damages to plaintiff in an amount determined by the jury for each cause of action;
- B. Award the costs and expenses of this action to plaintiff;

- C. Award reasonable attorneys' fees to the Plaintiffs under 42 U.S.C § 1988 and/or any other applicable laws.
- D. Award punitive damages in an amount determined by the jury;
- E. Award such other and further relief as this Court may deem appropriate.

Dated: New York, New York
April 12, 2020



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New York, New York 10120
Tel No.: (212) 406-9200
Email: Devon@LawDMR.com

Index No.: _____ Year _____
 SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF QUEENS

RJI No.:

Hon:

ROBERT SMITH,

Plaintiff,

-against-

City of New York, et al.

Defendant(s)

SUMMONS AND COMPLAINT

DEVON M. RADLIN

Attorney for Plaintiff

Office & Post Office Address, Telephone

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To:

Signature (Rule 130-1.1-a)

Print name beneath

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for

Please take notice

1 NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within names court on

1 NOTICE OF SETTLEMENT

that an order of which the within is a true copy will be presented for settlement to the HON.
one of the judges of the within names court, at
on

Yours, etc.

DEVON M. RADLIN

Attorney for Defendant

112 W 34th Street – 18th Fl

NEW YORK, NY 10120

To:

Attorney(s) for: